

Fact Pattern

Walter White works in IT and can do most of his work from home. Seeking a more spacious place to raise their children, Walter and his partner Jesse decide to move to the countryside. They decide to rent a house in a rural area about an hour north of Whitby, Ontario. They are very happy for the first little while, growing vegetables in the garden and building a treehouse for their sons. Then they start experiencing problems with their neighbours.

Just down the street lives Dov Yardley, who runs a small business making artisanal hand cream. Dov boils down the various ingredients, brewing them together before mixing them with moisturizing lotion and pouring them into fancy bottles. Although the final product smells very nice, many of the ingredients such as bergamot, neroli, and juniper give off a very strong smell when they are boiled down. Some of the inhabitants of the area like the smell, some aren't bothered by it, and some find it quite unpleasant. Poor Walter gets a migraine every time Dov goes into production mode, and this is usually for one or two days a week. Walter suffered a concussion some years back, and he thinks this may be why the strong smell triggers his migraines. To avoid getting a migraine on Dov's production days, Walter has to shut himself into a windowless basement room and work from there. Walter has complained to his local municipal councillor about the strong smell, but she says that Dov has a licence to carry on his business, is breaching no by-laws, and contributes to the local economy.

Across the street is a hog farm. The direction of the wind means that Walter and his family rarely smell the hogs themselves, but the farm also attracts crows, and during the summer months these are a real problem. Hundreds of crows circle over the hog farm and nest in the surrounding trees, including on the property where Walter and his family live. Their cawing is extremely loud (although it stops at night), their droppings make everything a mess, and they have nested in the boys' treehouse so it is no longer usable.

Finally, their next-door neighbour, Michelle Ansari, is planning to build a 'dream home' that is enormous in height and footprint. It will be so tall that it will block sunlight to the Whites' garden entirely, making it impossible to grow vegetables. The Whites did not know of Michelle's plans when they moved in, and did not know that she had already obtained the necessary permits to build her new home. They would like to stop the home being built if they possibly can.

Advise Walter and Jesse White if they have causes of action against Dov, the hog farm, and/or Michelle and if so, what their chances of success are. Address the question of defences and remedies, although you are not required to quantify any damages that may be payable.